

Chapter VI: Forms/Systems, structure and Organs of Government

Before we go into that part of the course, we will be considering forms, systems and organs of government, which might have adequately been covered in the first part of the course if it were not for the time and space limits that we had encountered by then. If you remember we have established the main principles on which the organs of the government should operate. This will be a continuation of those principles and how the machinery of the government could be structured.

As far as the organisation of the material of concerned, you have detailed explanations of the concepts and for easy access, each of the Arts of the constitution tabled for discussion have been put immediately before the discussion. While putting few queries for you so that you could try by yourself how you can interpret the concept under discussion, I have left three open lines so that you could write your own thoughts before reading what I will have to say. Moreover, each chapter has at least two exercises which again you will have to try and for each exercise I have tried to provide you with suggested answers at the end of the module. But be ware that you are expected to try to answer the exercise questions by yourself before checking my suggestions and for that too there are three lined open spaces where you can write preferably by using a pencil so that you can correct it whenever you think correction is necessary. In addition to that, I have tried to define some of the words which I consider might require you to check out your dictionary. But it is not possible to be exhaustive and as such you might need to time and again rely on your dictionary whenever you have difficulties in understanding a word, for this is the only way to properly follow the discussion. I wish you good luck in your study!

6.1 Forms/systems of Government

Dear student, what do you know about forms or systems of government from your intuitive knowledge? This is in Amharic termed as '*Serate-Mengist*'. And in its English usage, form and system are applied interchangeably in most of the constitutional jurisprudence, though form of government seems wider in scope since it is sometimes used to denote 'regime type' too, such as commonwealth (as used by Australia, the Bahamas, and Dominica, each of which are officially commonwealth), Dominions (as used by New Zealand and Canada), Kingdoms (by which 17 countries' regimes of the world are named at present), and Republic (which is used by 132 states of the world at present). When applied to a specific government, it is usually said system of government, even if 'form of government' would have offered no different meaning than does the former. Therefore, for our purpose, we shall be referring to systems of government to deal with the two most important categories, known as Parliamentary and Presidential systems of government.

6.1.1 *The Parliamentary system of government*

Our Constitution under Article 45 provides, '*The Federal Democratic Republic of Ethiopia shall have a parliamentary form of government.*' Thus, unlike the South African, the Nigerian, the Moroccan and most other African states' constitution, the FDRE constitution provides a name for the form of government that it has adopted than just leaving it to be inferred from its operational provisions that discuss the power structures of the government.

A parliamentary system is a system of government where the executive branch of the government (a branch which is entrusted with the task of policy formulation and execution) is being dependent on the direct or indirect support and supervision of the legislative branch of government. Hence, the separation of powers is not clear enough between the executive and the legislative branches, unlike the presidential system that we will discuss later. Have you noticed that in our system of

government a Minister might also happen to be a parliamentarian, whereby s/he sits in the House that legislates as well as happen to be in the Council of Ministers, an organ that executes the laws? Can you mention for me a Minister with such double roles from the present Federal Parliament?

The other distinguishing feature of the Parliamentary system is that usually it has a clear differentiation between the Head of Government and the Head of State, with the Head of Government being the Prime Minister or Premier, and the Head of State often being an appointed figurehead or hereditary monarch with only minor or ceremonial powers. The term figurehead refers to a person who holds an important title or office yet executes little power. Common figureheads include constitutional monarchs, such as Emperor of Japan, the Queen of England, and other 36 countries monarchs all over the world.¹ Figureheads can also be presidents in parliamentary democracies, such as the President of Ethiopia, the President of Israel, and other 35 countries all over the world.² It is, however, good to note that there are some countries with Parliamentary republic and having the powers of the Head of State and Head of Government held by one president who is to be elected by the legislature as is normally done in parliamentary system. South Africa and Botswana are two examples in this camp. Still the normal trend is to have them separately, while this is typical of the presidential system of government.

As is true in any political, social or other systems, the parliamentary system has its own advantages and disadvantages. Therefore, when opting to adopt this system, those given the task of formulating the constitutional framework will have to make a

¹ These are Andorra, Antigua and Barbuda, Australia, The Bahamas, Bahrain, Barbados, Belgium, Belize, Cambodia, Canada, Denmark, Grenada, Jamaica, Japan, Jordan, Kuwait, Lesotho, Liechtenstein, Luxembourg, Malaysia, Monaco, Morocco, Nepal, Netherlands, New Zealand, Norway, Papua New Guinea, Saint Kitts and Nevis, Saint Lucia, Saint Vincent and Grenadines, Solomon Islands, Spain, Sweden, Thailand, Tonga, Tuvalu, United Arab Emirates, United Kingdom, and Vatican City

² These are Albania, Austria, Bangladesh, Botswana, Bulgaria, Croatia, Czech Republic, Dominica, East Timor, Estonia, Ethiopia, Finland, Germany, Greece, Hungary, Iceland, India, Iraq, Ireland, Israel, Italy, Latvia, Lithuania, Macedonia, Malta, Mauritius, Montenegro, Poland, Portugal, Samoa, Singapore, Slovakia, Slovenia, South Africa, Switzerland, Trinidad and Tobago, Turkey, Vanuatu

value-judgment on those two critical sides and the final decision might not lead to a system of government that is perfect. Nonetheless, it will be the one that offers more advantages considering the social, political, economic, as well as historical contexts of the country that will have to be chosen. So, we now briefly see the advantages and disadvantages of the parliamentary system of government.

6.1.1.1 Advantages of the Parliamentary system of government

a) Easier to Pass Legislation

Some believe that it's easier to pass legislation within a parliamentary system. This is because the executive branch is dependent upon the direct or indirect support of the legislative branch and often includes members of the legislature. In a presidential system, the executive is elected independently from the legislature. If the executive and legislature in such a system include members entirely or predominantly from different political parties, then a deadlock can occur. Former US President Bill Clinton often faced problems in this regard, since the Republicans controlled Congress for much of his tenure as President. And in the contrary, the current President Bush the junior is facing such problems since Congress is controlled by the Democrats. That being said, presidents can also face problems from their own parties, as former US President Jimmy Carter did. But such a clash does not exist in the parliamentary system.

So far this advantage has been of great asset in Ethiopia since legislations are being issued with no observable challenges in the House.

b) Better in a multi-ethnic society

In addition to quicker legislative action, Parliamentarianism has attractive features for nations that are ethnically, racially, or ideologically divided. In a unipersonal presidential system, all executive power is concentrated in the president. In a

parliamentary system, with a collegial executive, power is more divided, and offers the better opportunity to accommodate differences.

c) Continuous Control

In the parliamentary system there exists a continuous control of the executive by the elected legislature. According to Dicey a parliamentary executive 'must, from the necessity of the case, be intensely sensitive and amenable to the fluctuations of parliamentary opinion and be anxious to meet the wishes of the body to which the Ministry owes its existence.' This is a concept known as 'vote of confidence' which is to mean that the executive, to remain as a political power-holder, must at all time maintain the majority's support (confidence vote) in the elected assembly. This same advantage might at times be a disadvantage because the executive is likely to become the creature of the parliament by which it is created and is likely to share the weaknesses which are inherent in the rule of an elected assembly.

However unlike the presidential system, where the executive is accountable directly to the electorate and who will be controlled once his/her term of office has been completed, the executive in the parliamentary system will have to account continuously to the peoples' representatives. Dear student, can you identify a provision from our constitution that speaks about the Council of Ministers being continuously checked by the House of Peoples' Representatives?

6.1.1.2. Disadvantages of the Parliamentary system

a) No direct vote for the Head of the Executive

One main criticism of many parliamentary systems is that the head of government is in almost all cases not directly voted on. Occasionally, an electorate will be surprised just by who is elevated to the premiership. In a presidential system, the president is usually chosen directly by the electorate, or by a set of electors directly chosen by the

people, separate from the legislature. However, in a parliamentary system the prime minister is elected by the legislature, often under the strong influence of the party leadership. Thus, a party's candidate for the head of government is usually known before the election, and the party will try its best for that candidate to succeed through the election as much as it does for the party's success as a whole. For instance, in the locality where Mr. *Meles Zenawi* is expected to go for a race, the campaign must be done in a way that ensures that he gets the majority vote.

How our Prime Minister is appointed, according to the FDRE Constitution, anyway? Have you seen the relevant provision in the constitution about this point? I have duplicated that provision for you here.

Article 73: Appointment of the Prime Minister

1. *The Prime Minister shall be elected from among members of the House of Peoples' Representatives.*
2. *Power of Government shall be assumed by the political party or a coalition of political parties that constitutes a majority in the House of Peoples' Representatives.*

This provision says that PM 'shall be elected from among members of the House of Peoples' Representatives' without stating the required vote that s/he should get in the from the House. This is to mean whether it has to be two-third majority, simple majority, or absolute majority is not clear from this provision. In such circumstances, Article 59 will be of some help which, under its subparagraph 1 states 'Unless otherwise provided in the Constitution, all decisions of the House shall be by a majority vote of the members present and voting.' Therefore, it will be just a 51% vote that a member of the Parliament will need to secure to assume the Premier's position, and this is always easy to secure for the party that has the majority seat in the Parliament.

The consequence of absence of a direct election of the PM by the people is that the PM has no any restriction of a particular person from being an elected for that position over and over again.

b) Uncontrolled Legislature

Another major criticism of the parliamentary system lies precisely in its purported advantage: that there is no truly independent body to oppose and veto legislation passed by the parliament, and therefore no substantial check on legislative power. In the presidential system, this control is exercised primarily by the president through his/her veto power. For instance, if Congress passes a legislation that the US president does not want to pass, then he can veto that legislation and return it back to the legislative organ so that there would be considered by the joint session of the two houses of the parliament. However, once the piece of legislation is adopted by this joint session, the president will be obliged to sign the bill. This form of control does not exist in the parliamentary system. For instance, once the House of Peoples' Representatives (HPR) of Ethiopia approves a certain law, either as a new one, amending a previous one, repealing the old one, or by ratifying an international treaty, 'the Speaker of the house shall transmit the draft law to the President of the Federal Government for signature suggesting that the house has discussed and approved it. Till the President puts his signature on the legislation, it remains as a draft, but only for a maximum of 15 days. The following is provided in Proclamation number 470/2005³, Article 11(b) which is in conformity with Article 57 of the constitution;

The President shall sign within fifteen days. If the President doesn't sign within fifteen days, the law shall take effect without his signature. The Speaker of the House, however, may undertake the technical correction, where deemed necessary, prior to its publication in the Federal Negarit Gazeta.

³ 'Federal Democratic Republic of Ethiopia House of Peoples' Representatives Working Procedure and Members' Code of Conduct (Amendment) Proclamation'

However, some believe to the contrary saying that the Parliamentary system rather creates a powerful executive branch, because of the lack of inherent separation of powers leading to the feeling that the legislature or judiciary has little scope to administer checks or balances on the executive. Since the executive organ has the majority's voice within the parliament and since the two will work hand in hand ultimately making the executive more powerful. Dear student how much do you agree with this assertion? When you think of your response think in light of the current Ethiopian situation; do we have a powerful legislative organ or a powerful executive branch? What do you think is the possible source of such distortion from the normal trend?

c) Being Unstable

Although it is possible to have a powerful prime minister, as Britain has, or even a dominant party system, as Japan has, parliamentary systems are also sometimes unstable. Critics point to Israel, Italy and the French Fourth Republic as examples of parliamentary systems where unstable coalitions, demanding minority parties, no confidence votes, and threats of no confidence votes, make or have made effective governance impossible. For instance, if those parties that are non-EPRDF come together and agree to deny the vote of confidence to the ruling party that would cause instability. However, defenders of parliamentarianism say that parliamentary instability is the result of proportional representation, political culture, and highly polarized electorates.

Read carefully the following provision from our constitution and how it can relate with this point of discussion relating to one of the disadvantages for the parliamentary system;

Article 60: Dissolution of the House

- 1. With the consent of the House, the Prime Minister may cause the dissolution of the House before the expiry of its term in order to hold new elections.*

2. *The President may invite political parties to form a coalition government within one week, if the Council of Ministers of a previous coalition is dissolved because of the loss of its majority in the House. The House shall be dissolved and new elections shall be held if the political parties cannot agree to the continuation of the previous coalition or to form a new majority coalition.*
3. *If the House is dissolved pursuant to sub-Article 1 or 2 of this Article, new elections shall be held within six months of its dissolution.*
4. *The new House shall convene within thirty days of the conclusion of the elections.*
5. *Following the dissolution of the House, the previous governing party of coalition of parties shall continue as a caretaker government. Beyond conducting the day to day affairs of government and organizing new elections, it may not enact new proclamations, regulations or decrees, nor may it repeal or amend any existing law.*

When can the PM exercise his/her power in Article 60(1)? What are the possible grounds for his decision to dissolve the House of Peoples' Representatives before the expiry of the 5 years period? And is there any kind of control on his/her exercise of this power? These questions are not clearly addressed in this provision and neither are they addressed under the subsequent legislations.

The Israel's parliamentary system is more or less the same with that of ours with only the exception that the PM is directly elected by the public on the same day that the members of the parliament are to be elected. And in that constitution, for the Knesset (which is the name for 'parliament') there are two possibilities that it might be dissolved before the expiry of its term and this could happen either by its own willful decision or by the decision of the PM. The constitution provides the grounds for an early dissolution of the Knesset by the PM in section 22;

Section 22 Dispersion of the Knesset by the Prime Minister

- a. Should the Prime Minister ascertain that a majority of the Knesset opposes the Government, and that the effective functioning of the Government is prevented as a result, he may, with the approval of the President of the State, disperse the Knesset by way of an order to be published in Reshumot; a decision to disperse the Knesset will be regarded as a decision of the Knesset to disperse prior to the completion of its term of service, and new elections for the Knesset and the Prime Minister, will be conducted on the last Tuesday before the passage of 60 days from the day of the dispersion of the Knesset.*
- b. The Prime Minister may not exercise his authority according to this section:*
 - 1. From the beginning of the period of service of the incoming Knesset and until the establishment of the new Government;*
 - 2. From the day on which the Knesset committee of the Knesset decided to recommend that he be removed from service and until the day the Knesset plenum renders its decision in the matter in accordance with the provisions of Sections 26 and 27.*

According to this provision, the PM may exercise his/her power to dissolve the parliament where the majority of its members oppose the government, which is the executive branch headed by the PM. In this circumstance a new election shall be held for the parliament as well as for the post of the PM. Here you can notice that the PM's right to dissolve the parliament is conditioned on various restrictions. First it has to be for the reason of loss of confidence in the parliament towards the government; this has to be ascertained by the PM and thus it may not be on an unfounded suspicion that this right can be exercised; third, the PM has to further ensure that such opposition is so grave that it prevents the effective functioning of the government; and finally, the decision to dissolve the parliament has to be approved by the President.

However, Article 60 of FDRE constitution does not have such detailed elaboration on the powers of the PM to dissolve the parliament. The only clue is the decision has to be 'with the consent of the House.' Dear student does this signal to you anything that might be of help in understanding the provision? If it has to be with the consent of the House, then the ground has to be something other than lack of support in the House, and this is supported by subparagraph two which talks about dissolution due to lack of vote of confidence to the government. The situation that for the first time in history the Israel Prime Minister exercised his power to dissolve the parliament in the Fall 2005 could be of some help. He lost support from his party (*Likud*) members concerning Gaza's pullout plan and then he decided to leave his party and form another one with his soft line supporters. The newly formed party is called *Kadima*. Then there was a need to hold election prior to its normal period since the previous support within the legislative branch was no more present. Do you think this same reason might be the one anticipated by subparagraph 2 of Article 60 of the FDRE constitution?

6.1.2. The Presidential system of government

Dear student, as you can remember quite easily, in the parliamentary system there is a mix between the legislative and the executive branches of the government, with the former exercising control over the latter. When it comes to the presidential system, the classical example of which is the US system, the opposite is true in the sense that the two organs of government work separately and the executive is not controlled by the legislative organ. Also called a congressional system, this is a system of government where the executive branch exists and *presides* (hence the term) separate from the legislature, to which it is not accountable, and which cannot in normal circumstances dismiss it.

It owes its origins to the medieval monarchies of France, England and Scotland in which executive authority was vested in the Crown, not in meetings of the estates of the realm (i.e. parliament). The concept of separate spheres of influence of the executive and legislature was copied in the Constitution of the United States, with the creation of the office of President of the United States. Perhaps ironically, in England and Scotland (since 1707 as the Kingdom of Great Britain, and since 1801 as the United Kingdom) the power of a separate executive reduced to a ceremonial role, and a new executive answerable to parliament evolved, while the power of the United States separated executive increased. This has given rise to criticism of the United States presidency, with accusations that the United States has an "Imperial Presidency". Others dispute the extent to which a real separation exists, referring to the concept of "separate institutions sharing power".

Even if the defining characteristic of the modern republican presidential system lies on how the president is being elected, the following features are also typical of almost all such systems;

- The president is both head of state and head of government,
- The president has no formal relationship with the legislature. He is not a voting member, nor can he introduce bills (with the exception of Puerto Rico, where he can introduce a bill). However, in systems such as that of the United States, the President has the power to veto acts of the legislature, and in turn a supermajority of legislators may act to override the veto. This practice is derived from the British tradition of Royal Assent, in which an act of Parliament cannot come into effect without the assent of the Monarch.
- The president has a fixed term of office. Elections are held at scheduled times, and cannot be triggered by a vote of confidence or other such parliamentary procedures. However, many presidential systems incorporate provisions for the president's trial and subsequent removal from office by the legislature if

he or she is found to have committed a crime. This is known, in the US, as *impeachment* procedure.

- The executive branch is unipersonal. Members of the Cabinet serve at the pleasure of the president and must carry out the policies of the executive and legislative branches. However, presidential systems frequently require legislative approval of presidential nominations to the Cabinet as well as various governmental posts such as judges; while the president generally has the power to issue orders to members of the Cabinet, military, or any officer or employee of the executive branch, a president does not generally have the power to dismiss or give orders to judges, which is an idea pertinent to the principle of judicial independence.
- The power to pardon or commute sentences of convicted criminals is generally given to heads of states in governments with a separation of power between legislative and executive branches of government.

There are two presidential examples which do not constitute a *Republican presidential system*; *dictators*, those not popularly or legitimately elected who style themselves as a "President". Likewise, many parliamentary democracies, notably Israel and Ireland, have a president which is largely *ceremonial* with little power. As we did for the parliamentary system, we shall now look into some of the advantages and disadvantages of the presidential system.

6.1.2.1. Advantages of the Presidential system

a) Direct election of the president by the people

A prime Minister in the parliamentary system is usually chosen by a few individuals of the legislature, while a president is usually chosen by the people. According to supporters of the presidential system, a popularly elected leadership is inherently more democratic than a leadership chosen by a legislative body, even if the legislative body was itself elected. But what are the values of the president being

directly mandated by the people, rather than being chosen by a few members of the parliament?

First, through making more than one electoral choice voters in a presidential system can more accurately indicate their policy preferences. Concerning the United States of America, some political scientists interpret the late Cold War tendency to elect a Democratic Congress and a Republican president as the choice for a Republican foreign policy and a Democratic domestic policy.

Secondly, it is also stated that the direct mandate of a president makes him or her more accountable. The reasoning behind this argument is that a prime minister is "shielded" from public opinion by the apparatus of state, which in the presidential system such a shield is being several steps removed.

b) Separation of powers

The fact that a presidential system separates the executive from the legislature is sometimes held up as an advantage, in that each branch may scrutinize the actions of the other. In a parliamentary system, the executive is drawn from the legislature, making criticism of one by the other considerably less likely. According to supporters of the presidential system, the lack of checks and balances means that misconduct by a prime minister may never be discovered. Critics respond that if a presidential system's legislature is controlled by the president's party, the same situation exists.

Despite the existence of the no confidence vote, in practice, it is extremely difficult to stop a prime minister or cabinet that has made its decision. To vote down the cabinet's legislation is to bring down a government and have new elections, a step that is likely to be taken in a manner that we have discussed above. Hence, a no confidence vote in some parliamentary countries, like Britain, only occurs a few times in a century.

Dear student, are you following our discussion? Then in which system do you think there is a better opportunity for checking each other's act between the legislature and the executive?

c) Speed and Decisiveness

Some supporters of presidential systems claim that presidential systems can respond more rapidly to emerging situations than parliamentary ones. A prime minister, when taking action, needs to retain the support of the legislature, but a president is often less constrained.

Other supporters of presidential systems sometimes argue in the exact opposite direction, however, saying that presidential systems can slow decision-making to beneficial ends. Divided government, where the presidency and the legislature are controlled by different parties, is said to restrain the excesses of both parties, and guarantee bipartisan input into legislation.

d) Stability

Although votes of no confidence tend to be rare in some parliamentary systems, they are common in a few others. Italy, Israel and the French Fourth Republic all have or had problems with governmental stability. When parliamentary systems have multiple parties and governments depend on coalitions, as they do with nations that vote by proportional representation,⁴ extremist parties can theoretically use the threat of leaving the coalition to blackmail the centrist parties who are leading.

⁴ **Proportional representation** is a category of electoral formula aiming at a close match between the percentage of votes that groups of candidates (groups by a certain measure) obtain in elections and the percentage of seats they receive (usually in legislative assemblies). It is often contrasted to **plurality voting systems**, where disproportional seat distribution results from the division of voters into multiple electoral districts. The plurality voting system is a single-winner voting system often used to elect executive officers or to elect members of a parliament which is based on single-member constituencies. Our election system seems to follow the latter type because under Article 13(2) of Proclamation No. 438/2005 (as amended) provides 'A candidate with more votes received than that by other competitors within the constituency shall be declared the winner.'

Many people consider presidential systems to be more able to survive emergencies. A country under enormous stress may, supporters argue, be better off being led by a president with a fixed term than rotating premierships. France during the Algerian controversy switched to a semi-presidential system, Sri Lanka did likewise during its civil war, and Israel experimented with a directly elected prime minister in 1992. In at least the first two cases, the results are widely considered to have been positive. In the Israeli case, however, direct election of the prime minister produced an unanticipated further proliferation of small parties, and the traditional parliamentary mode of selection was restored.

The fact that elections are fixed in a presidential system is likewise often held as a valuable "check" on the powers of the executive. While parliamentary systems often allow the prime minister to call elections whenever he sees fit, or orchestrate his own vote of no confidence to trigger one when he cannot get a legislative item passed, the presidential model is said to discourage this sort of opportunism, and instead force the executive to operate within the confines of a term he cannot alter to suit his own needs.

6.1.2.2. Disadvantages of the Presidential system

a) Tendency towards authoritarianism

Winning the presidency is a winner-take-all, zero-sum⁵ prize. A prime minister parliamentary system that does not enjoy a majority in the legislature will have to either form a coalition or, if he is able to lead a minority government, govern in a manner acceptable to at least some of the opposition parties. Even if the prime minister leads a majority government, he must still govern within (perhaps

⁵ Dear student do you know the concept of zero-sum? This is a concept that describes a situation in which a participant's gain or loss is exactly balanced by the losses or gains of the other participant(s). It is so named because when the total gains of the participants are added up, and the total losses are subtracted, they will sum to zero. Zero-sum can be thought of more generally as constant sum where the benefits and losses to all players sum to the same value. Cutting a cake is zero-sum or constant-sum because taking a larger piece reduces the amount of cake left for others.

unwritten) constraints as determined by the members of his party - a premier in this situation is often at greater risk of losing his party leadership than his party is at risk of losing the next election. On the other hand, once elected president can not only marginalize the influence of other parties, but can exclude rival factions in his own party as well, or even leave the party whose ticket he was elected under. The president can thus rule without any allies for the duration of one or possibly consecutive terms, a worrisome situation for many interest groups. Juan Linz argues that

'The danger that zero-sum presidential elections pose is compounded by the rigidity of the president's fixed term in office. Winners and losers are sharply defined for the entire period of the presidential mandate. . . losers must wait four or five years without any access to executive power and patronage. The zero-sum game in presidential regimes raises the stakes of presidential elections and inevitably exacerbates their attendant tension and polarization.'

In a presidential system, the legislature and the president have equally valid mandates from the public. There is often no way to reconcile conflict between the branches of government. When president and legislature are at loggerheads (are in strong differences) and government is not working effectively, there is a powerful incentive to employ extra-constitutional manoeuvres⁶ to break the deadlock. Ecuador is sometimes presented as a case study of democratic failures over the past quarter-century. Presidents have ignored the legislature or bypassed it altogether. One president had the National Assembly tear-gassed, while another was kidnapped by paratroopers⁷ until he agreed to certain congressional demands. From 1979 through 1988, Ecuador staggered through a succession of executive-legislative confrontations that created a near permanent crisis atmosphere in the policy. In 1984, President Leon Febres Cordero tried to physically bar new Congressionally-

⁶ Manipulation, tactical handling of matters

⁷ Troops trained to fight in parachutes

appointed supreme court appointees from taking their seats. Such a failure is rarely possible in the parliamentary system of government due to the close cooperation between the two powerful organs of the state, i.e., the legislature and the executive.

b) Separation of Powers

Presidential systems are said by critics not to offer voters the kind of accountability seen in parliamentary systems. It is easy for either the president or Congress to escape blame by blaming the other. Describing the United States, former Treasury Secretary C Douglas Dillon said "the president blames Congress, the Congress blames the president, and the public remains confused and disgusted with government in Washington."

Consider the example of the increase in the federal debt of the United States that occurred during the presidency of Ronald Reagan. Arguably, the deficits were the product of a bargain between President Reagan and Speaker of the House of Representatives. The latter agreed not to oppose Reagan's tax cuts if Reagan would sign the Democrats' budget. Each side could claim to be displeased with the debt, plausibly blame the other side for the deficit, and still publicize its own success, since both had got what they wanted to achieve, tax reduction for the president and budget approval for the Democrats, while the debt problem still remained a problem that the public would have to live with.

On the other hand, many observers believe that federal budget surpluses of the late 1990s in the United States were a direct result of divided government. A Republican Congress refused to allow Democratic President Bill Clinton to increase domestic spending, while Clinton refused to allow Congress to cut taxes. The combination of spending restraint and high revenues led to the elimination of the annual budget deficit. Thus, as we can see from such scenarios most of the political game depends on how the players manage to handle it properly and with due care to the public's interest.

c) Impediments to leadership changes

Another alleged problem of presidentialism is that it is often difficult to remove a president from office early. Even if a president is proved to be inefficient, even if he becomes unpopular, even if his policy is unacceptable to the majority of his countrymen, he and his methods must be endured till the moment comes for a new election. Since there is no legal way to remove an unpopular president, many presidential countries have experienced military coups to remove a leader who is said to have lost his mandate.

In parliamentary systems, unpopular leaders can be quickly removed by a vote of no confidence, a procedure which is reckoned to be a "pressure release valve" for political tension. Votes of no confidence are easier to achieve in minority government situations, but even if the unpopular leader heads a majority government, nonetheless he is often in a far less secure position than a president. Removing a president through impeachment is a process mandated by the constitution and is usually made into a very difficult process; by comparison the process of removing a party leader is governed by the (often much less formal) rules of the party in question. Nearly all parties (including governing parties) have a relatively simple and straightforward process for removing their leaders. If a premier sustains a serious enough blow to his popularity and refuses to resign on his own, then other prominent party members will likely initiate a leadership challenge in hopes of mitigating damage to the party. More often than not, a premier facing a serious challenge will resign before he or she is formally removed-Margaret Thatcher's relinquishing of her premiership being a prominent, recent example.

Walter Bagehot, in his book 'The English Constitution, the Cabinet', had described this situation in the following words;

'Under a cabinet constitution at a sudden emergency the people can choose a ruler for the occasion. It is quite possible and even likely that he would not be

ruler before the occasion...By the structure of the world we want, at the sudden occurrence of a grave tempest, to change the helmsman-to replace the pilot of the calm by the pilot of the storm. But under a presidential government you can do nothing of the kind. The American government calls itself a government of the supreme people; but at a quick crisis, the time when a sovereign power is most needed, you cannot find the supreme people. You have got a congress elected for one fixed period, going out perhaps by fixed installments, which cannot be accelerated or retarded-you have a president chosen for a fixed period, and immovable during that period: . . . There is no elastic element . . . you have bespoken your government in advance and whether it is what you want or not, by law you must keep it . . .'

Finally, many have criticized presidential systems for their alleged slowness in responding to their citizens' needs. Often, the checks and balances make action extremely difficult. Walter Bagehot said of the American system "the executive is crippled by not getting the law it needs, and the legislature is spoiled by having to act without responsibility: the executive becomes unfit for its name, since it cannot execute what it decides on; the legislature is demoralized by liberty, by taking decisions of others [and not itself] will suffer the effects."

6.2. Differences between the Parliamentary and Presidential system

Before we go to the next topic preceded by few exercise questions on the presidential system, let's briefly outline the differences that exist between the two systems which will also be an indirect summary of what we have already discussed. A number of differences, both theoretical as well as practical, exist between the two. Some of these are outlined below;

- In a presidential system, the central principle is that the legislative and executive branches of government should be separate. This leads to the

separate election of president, who is elected to office for a fixed term, and only removable for gross misdemeanor by impeachment and dismissal. In addition he or she does not need to choose cabinet members commanding the support of the legislature. By contrast, in parliamentarianism, the executive branch is led by a council of ministers, headed by a Prime Minister, who are directly accountable to the legislature and often have their background in the legislature.

- As with the president's set term of office, the legislature also exists for a set term of office and cannot be dissolved ahead of schedule. By contrast, in parliamentary systems, the legislature can typically be dissolved at any stage during its life by the head of state, usually on the advice of either Prime Minister alone, by the Prime Minister and cabinet, or by the cabinet. Which of these three options can be used under the FDRE constitution? Carefully read subparagraphs (1) & (2) while answering this question.
- In a presidential system, the president usually has special privileges in the enactment of legislation, namely the possession of a power of veto over legislation of bills, in some cases subject to the power of the legislature by weighed majority to override the veto. However, it is extremely rare for the president to have the power to directly propose laws, or cast a vote on legislation. The legislature and the president are thus expected to serve as checks and balances on each other's powers.
- Practically speaking, elements of both systems overlap. Though a president in a presidential system does not have to choose a government answerable to the legislature, the legislature may have the right to scrutinize his or her appointments to high governmental office, with the right, on some occasions, to block an appointment. In the United States, many appointments must be confirmed by the Senate. By contrast, though answerable to parliament, a parliamentary system's cabinet may be able to make use of the parliamentary 'whip' (an obligation on party members in parliament to vote with their party)

to control and dominate parliament, reducing its ability to control the government.

- Some countries, such as France have similarly evolved to such a degree that they can no longer be accurately described as either presidential or parliamentary-style governments, and are instead grouped under the category of semi-presidential system. Dear student read carefully what I have put in the following box about the semi-presidential system.

Σ

The **semi-presidential system** is a system of government in which a prime minister and a president are both active participants in the day-to-day administration of the state. It differs from a parliamentary republic in that it has a popularly elected president who is more than a purely ceremonial figurehead. It differs from the presidential system in that the cabinet, although named by the president, is responsible to the legislature, which may force the cabinet to resign through a motion of no confidence.

How the powers are divided between president and prime minister can vary greatly between countries. In France, for example, the president is responsible for foreign policy and the prime minister for domestic policy. In this case, the division of powers between the prime minister and the president is not explicitly stated in the constitution, but has evolved as a political convention. In Finland, by contrast, this particular aspect of the separation of powers is explicitly stated in the constitution: "foreign policy is led by the president in cooperation with the cabinet".

Semi-presidential systems are sometimes typified by periods of cohabitation, in which the prime minister and president are elected separately, and often from

rival parties. This can create an effective system of checks and balances or a period of bitter and tense stonewalling, depending on the attitudes of the two leaders, the ideologies of their parties, or the demands of their constituencies. As a typical example, Sri Lankan politics for several years witnessed a bitter struggle between the President and the Prime Minister, belonging to different parties and elected separately, over the negotiations with the LTTE (Liberation Tigers of Tamil Eel am, commonly know as Tamil Tigers) to resolve the longstanding civil war.

6.3 Structures of Government

6.3.1. Introduction

In the majority of nations, the public government contains multiple governments within itself, each of which has their own jurisdiction and laws. There are several structures of government, the unitary, the federal, and the confederate. These structures of government include a central core government that is spread nationally, along with governments of smaller divisions of the nation-state such as state, province, district, and city, among others. All of the said governments function according to a certain structured plan. Most countries have a government that uses either a unitary or a federal system, although some countries use a system with federal and unitary characteristics, such as a *federacy*.

Dear student, in this chapter our discussion is more of structure and the first chapter was on how this structure is to be put into motion. That is why we find about structure in our FDRE constitution under Article 1 which states ‘This constitution establishes a Federal and Democratic state structure.’ This state structure is

supposed to be operationalized through the parliamentary system of government as established under Article 45 that we have seen in our first chapter discussion.

6.3.2. Unitary state structure

The unitary system gives the main powers to the central government. State, provincial, and local governments are all created by the central government. The non-central governments have only the powers that are granted by the central government. Countries such as France, Italy, Japan, and the United Kingdom, along with other democratic nations, use the unitary structure of government. However, not every country uses the same rules in the centralization and decentralization of powers. Till the 1995 constitution, Ethiopia has had such unitary state structure with centralized power of governance.

The majority of the world's countries (currently nearly 169 countries) are unitary states mainly because most of them are not large enough to warrant a separation into distinct internal territories. Thus many of the non-unitary states of the world are very large in size, particularly Russia, Canada, United States, Brazil, India and Australia. This does not imply that large size will invariably result in non-unitary government; China, for instance, due to its political and socio-cultural history, has not seen the rise of a non-unitary arrangement, though certain economists argue that the current political and economic situation in mainland China constitute a unique form of Chinese federalism. Other counter-examples are Belgium and Switzerland, which despite a small territory have developed a complex federal system.

In a unitary state, any sub-governmental units can be created or abolished, and have their powers varied, by the central government. The process in which sub-government units and/or regional parliaments are created by a central government is known as **devolution**. A unitary state can broaden and narrow the functions of such devolved (sub-governments) without formal agreement from the affected bodies. In

federal systems, by contrast, assemblies in those states composing the federation have a constitutional existence and a set of constitutional functions which cannot be unilaterally changed by the central government. Even in some such cases, such as in the United States and Ethiopia, it is the federal government that has only those powers specifically delegated to it.

Most federal states also have unitary lower levels of government. Thus while the United States itself is federal, most (if not all) U.S. States are themselves unitary, with counties and other municipalities having only the authority given (devolved) to them by the state constitution or legislature. Similarly, in our federal system, each region has its own sub-levels of government, the lowest being *Woreda*. The powers and functions of these lower level governments are to be described in each of the regional legislations.

Dear student, have you grasped the concept of the unitary state structure? It is just a situation where we have a single legislature, executive and judicial organs of government and the subunits being dependent on the central command. You will understand it even better when we look into the other systems since you will have the opportunity to compare.

6.3.3. Federal State Structure

The name ‘federalism’ is derived from the Latin term ‘*foedus*’ which means **covenant**. The term federalism is used to describe a system of government in which sovereignty is constitutionally divided between a central governing authority and constituent political units (like states, provinces, regions or cantons). Thus, federalism is the system in which the power to govern is shared between the national & state governments, creating what is often called a federation.⁸

⁸ Be clear of the difference between ‘federalism’ and ‘federation’. Federalism is just the political concept used to describe the coming together of states/regions for the formation of federations. The latter is just the institutions of this sort that are formed through a federal constitution.

Unlike the Unitary system, the federal system develops when a number of states or provinces federate, or form a union, eventually in order to establish a nation. In a government using the federal system, the powers of the government are jointly shared between the central government and the more local or regional governments. Both of the central and regional governments are directly tied to the people, who are the source of a democratic government's authority. The United States, Argentina, Australia, Austria, Belgium, Brazil, Canada, Ethiopia, Germany, India, Mexico, and Switzerland, among others, have federal systems. It is more difficult for nation-wide totalitarianism to exist in a federation, for federation theoretically limits the centralization of power in the few, although the Soviet Union and Nazi Germany were formally federations also.

In its more general understanding, federal state structure is conceived of as an ideal organization of human affairs as reflected in the celebration of diversity through unity. Thus, it brings together two asymmetric interests with well defined mechanisms of balancing at the same time. It is thus considered as 'a compromise, conveyed by the image of checks and balances between unity and diversity, autonomy and sovereignty, the national and regional.' This is basically done through a federal constitution whose primary concern is the division of powers between the central and the regional governments.

Federalism

In distinguishing federation from other forms of state organisation most commentators consider it as a *decentralised political system* possessing a constitutional government in which constituent territorial units are involved in a *politics of accommodation*. The nature and scale of the divisions of powers between the centre and the region can be distinguished from other forms of political devolution by virtue of the fact that *regional autonomy and representation* are not

only more devolved but are constitutionally guaranteed. The *centre does not have the judicial right to abolish, amend or redefine* its territorial units. Thus, in federations, regional units are in effect truly local states with local state rights. (Graham Smith (ed), (1995), Federalism: The Multiethnic Challenge.)

Dear student, can you see few points that distinguish federal state structure from that of the Unitary? Can you pick at least three points from Graham's statements that make federation distinct from that of the Unitary state structure?

Dear student, if you have managed to extract the following points, you have clearly understood Graham's writings about federalism:

- Federalism is a decentralised system of government, while the unitary system is highly centralised one;
- More regional autonomy and representation within the central government exists in federalism which has to be guaranteed by a constitution, while in unitary state structure, the central government decides how much autonomy and representation should its subunits possess and that may not necessarily be in the constitution; and
- The central government does not have the unilateral judicial right to abolish, amend or redefine its territorial units as well as their powers.

These are the main points that Graham had enunciated in his writings.

Dear student, since this is a state structure that our country is currently having, we shall devote one subsection and will treat some of the remaining issues in there.

6.3.4. *Confederation*

A confederation is an association of sovereign states or communities, usually created by treaty but often later adopting a common constitution. Confederations tend to be established for dealing with critical issues, such as defense, foreign affairs, foreign trade, and a common currency, with the central government being required to provide support for all members. A confederation, in modern political terms, is usually limited to a permanent union of sovereign states for common action in relation to other states.

The nature of the relationship between the entities constituting a confederation varies considerably. Likewise, the relationship between the member states and the central government, and the distribution of powers among them, is highly variable. Some looser confederations are similar to international organizations, while tighter confederations may resemble federations.

In a non-political context, confederation is used to describe a type of organization which consolidates authority from other semi-autonomous bodies. Examples include sports confederations or confederations of Pan-European trade unions.

Most of the confederations of states existed only in history and some of these were the Swiss Confederation (1291-1848); New England Confederation (1643-1684); Confederate States of America (1861-1865); Union of African States (1961-1963, Mali+ Ghana+ Guinea); United Arab Republic (confederation de facto, 1958-1961, Egypt + Syria, 1963, Egypt + Syria + Iraq); *Senegambia* (1982-89, Senegal + Gambia). While these are confederal states, examples of international organisations with the characteristics of confederation are Commonwealth of Independent States (soft confederation with very few central powers, consisting of former members of the Soviet Russia); European Union (soft confederation; foreign affairs left to member

states, many issues need unanimity of the member states); and United Nations (soft confederation; very few central powers allotted by member-states).

Confederation vs. Federation

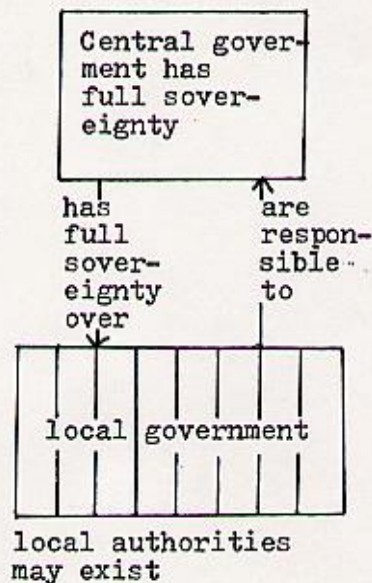
The difference in meaning between a confederation and a federation had evolved in usage over time. Prior to the American Civil War, the terms were largely synonymous, but differing political views with regard to the nature of political unions, especially as applied to the US Constitution (which up to that time was considered both a Federal and a Confederated Union), caused each of the terms to subsequently embody one of the two rival and opposing theories of state's rights. Currently, a confederation is considered a state or entity similar in structure to a federation but with a weaker central government. A confederation may also consist of member states which, while temporarily pooling sovereignty in certain areas, are considered entirely sovereign and retain the right of unilateral secession.

A confederation is sometimes a loose alliance but in other cases the distinction between a federation and a confederation may be ambiguous. In contrast to a federation, a member state may participate in more than one confederation.

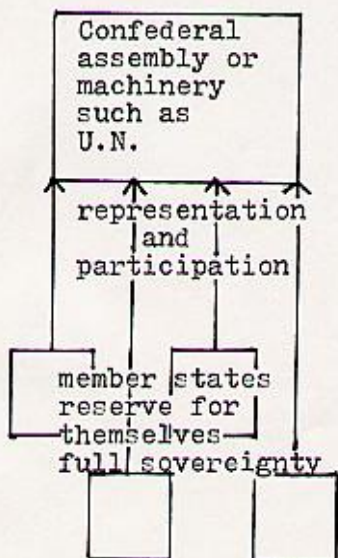
Because of the historical synonymity between the words Confederation and Federation, some nations originally organized themselves using the term "confederation," but are in fact federations in structure as currently defined. Although Switzerland is officially styled as the Swiss Confederation, it is a Federation by modern standards. The United States of America was first organized under the Articles of Confederation and Perpetual Union, which would today be defined as a Federation, and continued as such under the current Constitution of the United States in 1789.

UNITARY, FEDERAL AND CONFEDERAL SYSTEMS OF GOVERNMENT

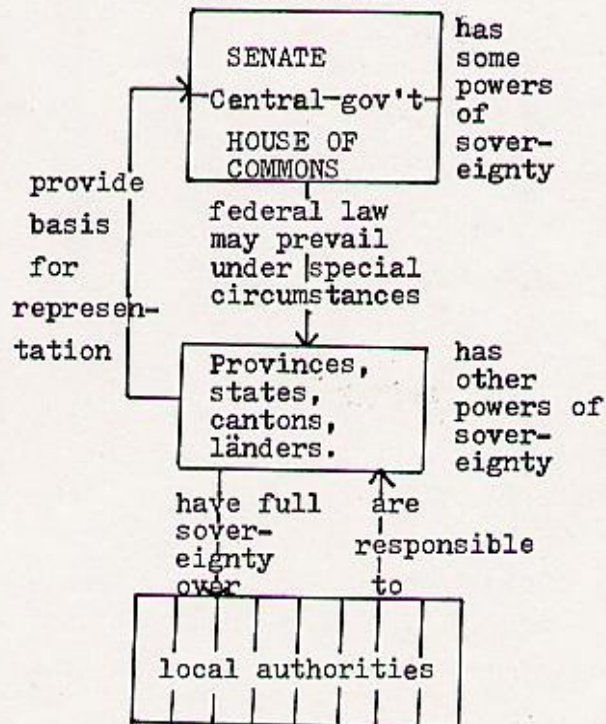
UNITARY SYSTEM



CONFEDERAL SYSTEM



FEDERAL SYSTEM



The statement that says 'federal law may prevail under special circumstances' is not true in our federal system, unless one argues that the general principles of federalism must be used to interpret the constitution so as to read into it this supremacy of the federal law over that of the regions. But as of yet, there has

been no assertion of this sort by the organ which is entitled to authoritatively interpret the constitution.

I think by now you are able to understand the 'Senate' to mean in our case 'House of Federation' and the 'House of Commons' as the 'House of Peoples' Representatives.'

6.3.5. *Federacy*

A federacy is a form of government that shares features of both a federation and unitary state structure. In a federacy, at least one of the constituent parts of the state is autonomous, while the majority of constituent parts are not or comparatively less autonomous. An example of such an arrangement is Finland, where Åland, which has the status of autonomous province, has considerably more autonomy than other Finnish provinces. The autonomous constituent part enjoys independence as though it was part of federation, while the other constituent parts are as independent as subunits in a unitary state. This autonomy is guaranteed in the country's constitution. The autonomous subunits are often former colonial possessions. These autonomous subunits often have a special status in international relations.

Let's see the Finnish Åland and that of India's Kashmir so that to have a clear picture of federacy. Finland is divided into six provinces. Åland, although one of the six provinces, enjoys a high degree of home rule as opposed to the five in mainland Finland. Extensive autonomy is granted in the Act on the Autonomy of Åland of 1920, and the autonomy was affirmed by a League of Nations decision in 1921. The government of Åland handles duties exercised by state provincial offices of the central government in other provinces. It sends one representative to the Finnish parliament. It is demilitarized, and is a member of the Nordic Council. Most of

Åland's inhabitants speak Swedish. Åland's autonomous status was a result of disputes between Sweden and Russia, and between Finland and Sweden.

India is a democratic federation. After independence, various princely states were formally invited to join the Indian Republic, which were accepted. The Kashmir province was ruled by a Hindu king but the majority of its population was Muslim. When Pakistani militants invaded his land, the king agreed to join the Indian Republic, with an agreement for Kashmiri autonomy.

Currently, Kashmir is a disputed territory, with both India and Pakistan claiming it as their own. The military conflict has diminished the autonomy of the region. India controls about two-thirds and Pakistan controls the remainder. The area under the control of Pakistan is generally referred to as POK, i.e., Pakistan Occupied Kashmir.

Dear student, do you understand the unique nature of federacy? What makes it different from that of federal state structure or that of the unitary state structure? A federacy differs from a unitary state structure because in the latter the central government can revoke the 'independence' of the subunits without a need to change the constitution. And the independence of the subunits is just for the purpose of administrative convenience and nothing more. Federation is a system, as we saw before, where the autonomy of each region is one and the same. In federacy we find a kind of mixed situation of unitary and federal state structure in that to the extent of Åland's independence, there is a sign of federation while for the rest of the provinces, the unitary state structure principles still continue to apply. Where the country follows a federal state structure in principle and grants a higher autonomy to one of its regions like Quebec of Canada, then it becomes very much indistinct to call it either federacy or federation. That is why political scientists call it asymmetric federation.⁹

⁹ **Asymmetric Federation** is a federation where one or more of the states have considerably more autonomy than the other subunits, although they have the same constitutional status. The division of powers between

Now we will have to go through few questions by way of revisiting what we have discussed so far and I do hope that this will give you the opportunity to once again go and re-check the material.

6.4. Ethiopia's Federal state structure revisited

Dear student, Ethiopia is one of the countries of the world that follows the federal set up. And it has been only a while since the country adopted a federal constitution and started running the system. In this subsection we will be looking into some important points relating to federal state structure with repeated reference to the case of Ethiopia. Starting from the question why do states need to enter into federal setup, we will explore how federal state structure is being designed, what essential pre-requisites should be met for opting to a federal set up, and how power is distributed between the two-tiered governments. Finally we will conclude the chapter with few review questions.

6.4.1. Why Federalism?

The question as to why a federal state structure might be opted could either be because of *necessity* or *desirability*. Even if from their ordinary usage, necessity and desirability might seem synonymous, for our purpose, these are to be considered as speaking two different situations. We shall look into them separately.

a) Federalism as a matter of Necessity

Federalism is to be considered a question of necessity where unitary state structure and closer cohesion would be impossible. And in such situations, the question of the desirability of federalism-where we try to weigh the advantages and disadvantages

subunits is not symmetric (hence the name asymmetric. Dear student, symmetry means 'constancy', i.e., if something retains a certain feature even after we change a way of looking at it, then it is symmetric.)

of two viable options-as a method of decentralisation is virtually irrelevant. Therefore, where unitary state structure is ruled out from the options then federalism becomes a matter of necessity.

Of course, there has to still be reasons to come together and form a compact where unity is balanced with diversity, as that is the essence of federalism. Dicey, while writing about the attitudes that must exist for federal state structure said, *'federalism requires for its formation two conditions; on the one hand there must be a body of countries/regions...so closely connected by locality, by history, by race, or the like, as to be capable of bearing, in the eyes of their inhabitants, an impress of common nationality...On the other hand, there must exist a very peculiar state of sentiment among the inhabitants of the countries, which it is proposed to unite. They must desire union, and must not desire unity.'* Thus, as we said in the previous sub-section, the federal constitution's worry will be to strike a balance between these two interests.

Historically, many federal state structures owe their need for autonomy from *colonialism*. For the sake of effective exploitations, the colonizing countries used in their dominion a divide and rule methods that entrenched a sense of detachment among the various localities so divided. The parcelling out of jurisdictions and lands on arbitrary grounds of mere transient convenience had later been taken seriously by the local people that rendered a quest for autonomy a matter of necessity.

Apart from the colonial legacy, *inherent diversities* have also played a central role in the desire for nationhood and separation. In Canada, for instance, language and religion were more important than topography and administrative organisation in evoking the federal solution. And for the US, despite the common language, there were other driving motives for their federal state structure and when writing about the same issue, James Madison made the following remark; 'the great danger to our general government is that the southern and northern interests of the continent are

opposed to each other, not from their differences in size, but from climate, and principally from the effect of their having or not having slaves.'

In treating federalism as necessity, because more was impossible, we have stressed thus far the sources of only one of a 'very peculiar state of sentiment'-the aspect that resists unity. The other side is *the will to associate*. Its source may be traced to two sets of factors. The first is **positive compatibility**. The second is **shared apprehension and mutual defense**. Fear has been a dynamic-or at least catalytic-in most federal undertaking that has been more than imitative. The American states, for example, knew the extent to which their independence had been won in the end as an incident of a European war; not yet secure on the continent and clearly aware of external forces, they feared the risks in division as a fulcrum for intrigue and dissension and an opening for attack. Canadian union in mid-century was influenced by defensive concern. In Australia the belated movement for federation was quickened in part by coming of power politics in the pacific; an immediate factor was the threat of modern Japan as revealed in the closing decade of the century.

Nevertheless, fear as a motive alone is not enough to produce combinations that are lasting. The problem of federation today, especially when national units are dealt with, is to find, in addition to well-justified defensive motives, the positive elements that may lie in cultural and economic conditions and needs, which we call positive compatibility.

b) Federalism as a matter of Desirability

The case for a federal rather than a unitary constitution-that is, when it is relevant to canvass or investigate the arguments-may be stated summarily under five points. First, when diversities are pronounced and located with reasonable compactness, the geographical deconcentration of important powers secures greater correspondence between public policies and local majority sentiment on matters entrusted to the constituent governments. Second, by multiplying the independent legislative arenas,

the system gives scope for experimentation, followed by imitation. Third, the multiplication of the bodies of elected officials who bear considerable responsibility in their own right broadens the opportunity for political participation. Fourth, the system is suitable for government over large or scattered areas. Fifth, federalism lessens the risk of monopoly of political power by providing a number of independent points where the party that is nationally in the minority at the time can maintain itself while it formulates and partly demonstrates its policies and capabilities and develops new leadership.

Looking back to the foregoing five arguments, it must be conceded as to the first four that the results they contemplate could be approximated in a decentralised unitary state, developed in a tolerant society that believed in diffused initiative. The fifth argument rests upon features peculiar to a federal structure, provided it is not the type that legalises forceful intervention by the central government; besides the argument assumes that the surrounding conditions assure competitive politics and orderly elections.

Doubts about the suitability of federal structure for national states under modern conditions-unless federalism is the closest form of organisation possible at the time-arise in two directions: in **domestic policy and in international affairs**. In the background is the question of maintaining cohesion and peace within the composite state.

The proponents of federalism as the means of maintaining peace while achieving cohesion amid diversity face the disturbing fact that the two outstanding federal systems were stabilised on the battlefield: Switzerland in the few weeks' war of the Sonderbund in 1847; the United States in a four years' struggle that was the greatest civil wars of the century. Thus, it is argued that federalism exposes, domestically, to the risks of civil war because the units might take their differences seriously. From the international point of view, opponents argue that a federal state might be so

structured as to be at a disadvantage in its international politics because of lack of power at the centre. With this same standpoint, the problem of the federal state in international affairs may be complicated (though not necessarily to the disadvantage of the country in question) by the claim of constituent members for separate representation. Finally, the possible embarrassments to friendly international relations that may be caused by the action or inaction of the constituent governments and their subdivisions within the fields left to them by federal constitution. The central government assumes few direct responsibilities for what happens to or by aliens; full responsibility would hardly be compatible with the federal principle. Thus, these points-risks of civil wars when viewed from domestic policies as well as the disadvantages in international relations of a federal state-might be put at the other side of the balance to measure the desirability of federalism as a system when it is not a sheer matter of necessity.

The obvious question for you would be then, which one of the sides do you think outweigh the other? Dear student do you think federalism has much to offer so as to render it as a desirable state structure than the unitary state structure? Moreover, do you think the Ethiopian federal state structure was a matter of necessity or was it a desirability issue whereby the architects of the system had passed through the measuring processes of the advantages and disadvantages of the federal state structure?

When one looks into the Preamble of the federal constitution, there are many points that speak about those factors that render unity and respect of diversity somehow desirable. I have duplicated the relevant bits here;

We, the Nations, Nationalities and Peoples of Ethiopia:

Strongly committed, in full and free exercise of our right to self-determination, to building a political community founded on the rule of law

and capable of ensuring a lasting peace, guaranteeing a democratic order, and advancing our economic and social development;

*Firmly convinced that the fulfilment of this objective requires full respect of individual and people's fundamental freedoms and rights, to **live together on the basis of equality and without any sexual, religious or cultural discrimination**;*

*Further convinced that by **continuing to live with our rich and proud cultural legacies in territories we have long inhabited**, have, through continuous interaction on various levels and forms of life, built up common interest and have also contributed to the emergence of a common outlook;*

*Fully cognizant that our common destiny can best be served by **rectifying historically unjust relationships** and by further **promoting our shared interests**;*

*Convinced that **to live as one economic community is necessary in order to create sustainable and mutually supportive conditions for ensuring respect for our rights and freedoms and for the collective promotion of our interests**;*

*Determined **to consolidate, as a lasting legacy, the peace and the prospect of a democratic order** which our struggles and sacrifices have brought about*

The Preamble is highly preoccupied with the elaboration of the new federal state structure extensively by posing the justifications for both unity and separation. Dear student, which paragraphs of the preambular text describe the grounds for the desire for unity? Which of those paragraphs speak about the justifications for the desire to maintain regional autonomy?



The interest for the full and free exercise of the right to self-determination by insuring regional autonomy is supposed to justify the interests for separation for which most of the opposition parties had been fighting for 16 or more years. Moreover, ensuring equality and tackling discrimination on the grounds, among others, of culture is considered as a precondition for the guarantee of the right to self-determination, which again is another motive for regionalisation. However, the preamble also hints promotion of historically shared interests, the desire to live as one economic community in order to create sustainable and mutually supportive conditions and the consolidation of the peace and the prospect of a democratic order as some of the driving motives for unity. When one combines these two interests, there shall be a system of unity amid inherent diversity, and it is a federal state structure that ensures this sort of combination.

6.4.2. How Federal State structure is formed?

There are at least two ways through which a federal state structure could emerge and the terms centripetal and centrifugal federalism are being borrowed from the science of physics to represent these. By 'centripetal force' a physics professional refers to an inward force that moves an object towards the centre, which is a combination of two Latin terms: '*Centrum*' (Centre) and '*Petere*' (tend towards). This is the case, in the context of federal state structure formation, where two or more states come together to form a union in furtherance of those aims that we discussed above as forces that tie regions together under a single central government. This had happened in history in the case of the United States. This is thus the sort of situation in which federalism might be of value in making a nation out of a group of communities which are themselves of distinct or differing nationality.

The second term is 'centrifugal force' which is the opposite of centripetal force and is derived again from two Latin terms: '*Centrum*' (centre) and '*fugere*' (to flee). It therefore means to move away from the centre and in relation to federal state structure formation, it is where a previously united nation decides to form such a system for the various reasons that call for appreciation of internal diversities. Here a case in point is our own country Ethiopia, and from the federations of the world that of Australia and Switzerland can be mentioned. While in centripetal federalism what calls for such structure are the forces of unity, in the case of centrifugal federalism the forces of diversity call for a federal state structure. In both cases, however, there is a need to make sure that either of the forces doesn't overwhelm the other.

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Thus, federalism is the result of centralizing (Centripetal) and decentralizing (Centrifugal) forces which are at play at the time of the formation of the union and which continue to affect the union long after the system has been created. When the reasons to come together are extremely powerful, the tendency is to entrust the central government with large and extensive powers, indeed to make it the "main" government. When the reasons to remain apart are stronger than the reasons to come together, the result will be that the local governments will be entrusted with the largest powers. Each federation finds its balance somewhere along the line and the resulting distribution of power between the two levels of government is witness to the respective strength of the centralizing and decentralizing forces at the time of the union. So long as some sovereignty is deposited in each level of government, then we are dealing with a federal system.

In centrifugal federalism, one important decision that need to be made through the federal constitution is the bases on which the autonomous regions are going to be formed. This question was not a problem while establishing the American federal state structure since those states that came together to form the union were independent sovereign nations that had their own delimited boundaries. That is true for almost all centripetal federalisms. In federal state structures such as Ethiopia, however, this might not be an easy task to handle. That was exactly the most debatable point during the early 1990s while crafting the federal constitution of Ethiopia. While many desired to follow the old provincial structure as grounds of delimiting each of the regions, others, including the ruling party members, called for a pattern of delimitation based on ethno-linguistic grounds. They had propounded that it was the only way to soften the tensions that existed for long in the country and which resulted in the major armed struggles.

Accordingly, the latter view had won the debate and the Preamble declares the constitution as a pact, not of 'Ethiopian' as such, rather of 'the Nations, Nationalities and Peoples of Ethiopia.' It is more or less saying 'We, the People of the United States' rather than 'We, the American People' or 'We, the American Nation' as declared by the US federal constitution. This gives a clue about what is to be stated in Article 46 as grounds for regions-formation which states under subparagraph 2 the following:

States shall be delimited on the basis of the settlement patterns, language, identity and consent of the peoples concerned

Dear student, can you see the four grounds i.e., settlement patterns, language, identity and consent of the people, which are enumerated as basic criteria for delimitation in reality? Thus, it is assumed that the nine regional states of Ethiopia are classed as such on these cumulative, or at least majority of these elements. Do you think it is mere presumption or something that actually has happened? Some

argue that it was mere ethno-linguistic criteria that had been applied. Moreover, the difficulty of defining 'identity' and 'settlement patterns' in the case of Ethiopia makes them less likely to be applied strictly for the regions' formation. Ethnicity has not been mentioned explicitly in this Article unless we interpret identity widely to include such matters as ethnic, cultural, religious (etc) identities.

Ethnicity

There is often a problem in defining concepts like ethnic identity, ethnicity, nationality and nationalism. Like all other 'isms' they lack clarity and authors as well as practitioners have used them in many different ways. It is striking to observe this fact, not only at global level but also in the Ethiopian context. The nomenclature of the Ethiopian federal system, for instance, ranges from those who insist in calling it 'ethnic' or '*ye gossa*' federalism, to those who argue ethnic federalism has negative connotations and consider it as a pejorative one and hence prefer to call it as a '*multicultural*' federal system.

Although it is not easy to decipher the distinction, it appears that ethnicity is different, although not clearly, from nationalism. Ethnicity is a state of mind emanating from a feeling of separate identity, which in turn is based on shared cultural markers (culture, language, religion, etc), but more importantly on the myth of common descent. It is important to point out that the myth of common descent is an essential characteristic of an ethnic group but not of national groups that share a common language, religion, custom, history and tradition but not necessarily a common descent. The subjective belief in myth of common descent is in short the essence of an ethnic group or ethnicity...(Excerpt from Fiseha, A., (2005/6), *Federalism and the Accommodation of Diversity in Ethiopia: A Comparative Study*, Utrecht)

